

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION,
(CIVIL REVISIONAL JURISDICTION)

Present:
Mr. Justice Md. Moinul Islam Chowdhury

CIVIL REVISION NO. 218 OF 2011

Abdur Rahman Sikder and another
..... petitioners

-Versus-
Ismail Sikder alias Yousuf Ali Sikder and others
..... Opposite Parties

Mr. Abdul Barek Chowdhury
..... For the Petitioners

Mr. Mr. Tappan Kumar Chakraborty with
Mr. Md. Abdur Rashid and
Mr. M.A. Gaffar, Advocates
..... For the Opposite Parties

Heard on 25.07.2016, 07.08.2016 and
Judgment on 29.08.2016

At the instance of the Defendant Nos. 21 and 35-Respondent-Petitioners, this Rule has been issued calling upon the opposite party Nos. 1-3 to show cause as to why the impugned judgment and decree dated 14.07.2010 and 20.07.2010 respectively passed by the learned Bishesh District Judge Adalat and Jananirapatta Bignnakari Apporad Daman Tribunal, Barisal in Title Appeal No. 178 of 2009 reversing the judgment and decree dated 18.08.2009 and 26.08.2009 passed by the Joint District Judge, 3rd Court, Barisal in Title Suit No. 116 of 1994 should not be set aside.

The relevant facts for disposal of the Rule, inter alia, are that the present opposite party No.1 as the plaintiffs filed the Title Suit No.116 of 1994 in the court of learned Joint District Judge, Court No. 3, Barisal

against the present petitioners and others for partition of land measuring 1.34 acres after affirming the title of the said land and also for cancellation of the judgment and decree passed in the Title Suit No. 65 of 1954 mentioned above in the plaint appertaining to C.S. Khatian No. 462 of Mouza Chakhar, District- Barisal. The land measuring 1.79 acres was originally belonged to Abdul Karim Munshi and Sufia Khatun in equal shares. Abdul Karim transferred of land measuring 1.79 acres on 22.03.1921 in favour of Rahimuddin Sikder and the said Abdul Karim Munshi again transferred the land by way of settlement measuring 0.49 acres in favour of one Roizuddin on 22.03.1921. The co-owner of Abdul Karim Munshi also transferred the land to Mir Abdul Latif and others by way of patton for an area of 0.65 acres in favour of Rahimuddin Sikder on 22.03.1921.

The said Raisuddin transferred the land measuring 0.15¼ acres and also 0.09 acres by way of sale to Ismail Sikder by two sale deeds dated 10.04.1973 and 03.02.1975. The said Rahimuddin Sikder died leaving behind the present plaintiff-opposite party no. Ismail Sikder alias Yousuf Ali Sikder and also leaving behind opposite party No. 27 Azimon Bibi and others. The brother of Raisuddin Choton Sikder alias Basher Sikder managed to record R.S. Khatian wrongly in the name of 3 brothers, namely, Rahimuddin, Momenuddin and Basher Sikder. The said Basher Sikder thereafter disclosed to the plaintiff No. 1 about exparte decree obtained in the Title Suit No. 65 of 1954 without giving any notice to the present plaintiff opposite party No. 1 or any of his predecessor, as such, the

suit was filed for partition and for cancellation of the judgment and decree passed in the Title Suit No. 65 of 1954.

The present defendant No. 21, namely, Abdur Rahman Sikder and the defendant No. 35, Alamgir Sikder as the defendant contested the suit by filing a separate written statements contending that one Tarafdi Sikder died leaving behind 3 sons Rohimuddin Sikder, Mominuddin Siker and Choton Sikder alias Basher Sikder. Rohimuddin Sikder was the eldest brother who was major regarding his age but his two other brothers were minors. Rahimddin took patton of the land measuring 1.79 acres and 0.65 acres from the C.S. recorded landlord Abdur Karim Munshi and from Abdur Latif and others of khatian nos. 462 and 445 respectively and he used to make payment from the source of Joint family income where his other brothers had equal interests. In the above circumstances the land was recorded in the name of 3 brothers. Pursuant to the said recorded, the successors of these brothers purchased and sold land on several occasions by executing several deeds as the record of right. These transfer and retransfer of land made thing complicated to distribute the land by way of partition. It is contended that the disputed land was given patton in favour of Rahimuddin who used to pay the amount from the joint family income, therefore, the land was recorded in the R.S. in the name of 3 brothers or in the name of successors of 3 brothers who are entitled to ownership as to the respective land pursuant to the record of right.

The present defendant Nos. 35 as the defendant contested the suit by filing a separate written statement contending, inter alia, that Rahimuddin took patton for himself and for the interest two other brothers upon the land

measuring 2.45 acres as the patton money was given from the joint family source of income. It is also contended that the patton could not be taken in the name of other two brothers as they were minors on 22.03.1921. The said land was correctly recorded in the name of successors of 3 brothers and each of them are in possession of the land. The defendant No. 4 Mvi. Salauddin Ahmed Majumder brought the Title Suit No. 65 of 1954 wherein the name of one Syed Nuruzzaman was included as the defendant and saham was allotted in his name. Eventhough the said Syed Nuruzzaman executed a nadabipatra on 08.02.1983. Prior to the said Nadabipatra the grandson of Rahimuddin filed title suit No. 580 of 1981 to set-aside the decree passed in the title suit No. 65 of 1954. The said owners by way of record of right executed the several sale deeds in favour of several persons on n several occasions.

At the hearing of the said suit the present plaintiff-opposite parties adduced 3 witnesses and exhibited some documents in support of his case. On the other hand, the defendant-petitioner Nos. 21 and 35 examined in total 4 witnesses as D.Ws. and exhibited some documents in support of their respective cases.

After hearing the parties the learned Joint District Judge, Court No. 3, Barisal dismissed the suit by its judgment and decree dated 18.08.2009. Being aggrieved the present plaintiff-opposite parties as t he appellants preferred the Title Appeal No. 178 of 2009 in the court of learned District Judge, Barisal which was heard on transfer by the learned Bishes District Judge Adalat and Jananirapatta Bighnakari Apporad Daman Tribunal, Barisal who allowed the appeal by the judgment and decree dated

14.07.2010 and set aside the judgment and decree passed by the trial court. Challenging the said judgment of the appellate court as the impugned judgment and decree this revisional application has been filed under section 115(1) of the Code of Civil Procedure and the Rule was issued thereupon.

Mr. Abdul Barek Chowdhury, the learned Advocate appearing for the petitioners submits that the sale deeds exhibited as exhibits –Ka and Ka-1 are sufficient to prove that the record of right pursuant to the R.S. and S.A. Khatians of the suit land were correctly recorded and the present plaintiff-opposite parties failed to revert the presumption of the record of right in the R.S. and S.A. Khatian. The above matter of record of right was discussed by the trial court but the learned appellate court did not controvert the findings of the learned trial court, as such, the appellate court below committed an error resulting in an error in the decision occasioning failure of justice. He further submits that the plaintiff-opposite parties filed the suit for partition but without making the necessary parties, therefore, the suit has been properly found defect of parties by the trial court because some of the persons who had common interest in the land were not made party, as such, the impugned judgment passed by the learned appellate court below is not a proper judgment of reversal thus, this court need to interfere with the judgment and decree of the appellate court and also made the Rule absolute.

The learned Advocate also submits that the suit land was originally settled by way of patton to Rahimuddin who was holding right and interest for himself as well as for other two minor brothers as they all belonged to a joint muslim family. The learned trial court dismissed the suit on the

ground of section 90 of the Trust Act, 1882 which refers to a right of trust created upon the adult member of the joint family for the benefit of the others, in particular, the minor members of the family, as such, the Rule should be made absolute.

The Rule has been opposed by the opposite party Nos. 1 to 3 by contending, inter alia, that the suit land was settled by way of patton by the original land owners Abdul Karim Munshi and Abdul Latif both dated 22.03.1921 in the name of Rahimuddin Sikder, therefore, the land was actually transferred in the name of Rahimuddin and the said deed of patton neither mentioned about the family members or any other persons but by inclusion of the other brothers and successors wrongly recorded in the R.S. Khatian of their names by misleading the official authorities and also by showing the exparte decree passed in the title suit No. 65 of 1954 which obtained by practicing fraud.

Mr. Tapon Kumar Chakroborty, the learned Advocate appearing along with the learned Advocates Mr. Md. Abdur Rashid and Mr. M.A. Gaffar submits that there is no dispute that the suit land was originally owned by Abdul Karim Munshi, Sufia Khatun and Mir Abdul Latif and also there is no dispute that said Abdul Karim Munshi and Abdul Latif settled the land as being the Landlord by way of Patton in the name of Rahimuddin alone by executing patton dated 22.03.1921, therefore, under the provision of the State Acquisition and Tenancy Act Rahimuddin alone got raiti title upon the land who can only claim entitlement by operation of law of the State Acquisition and Tenancy Act, 1950.

The learned Advocate also submits that the present defendant-petitioners do not deny that the land was settled in the name of Rahimuddin but the claim of any entitlement or any right as the members of the joint muslim family cannot lawful or a legal claim because in the Muslim Family Law there is no concept of joint family. In support of his submission the learned Advocate referred to a case of Farrokh Ahmed -Vs- Abul Khair and others reported in 6 DLR(1954)365 and referred to a case of Md. Korban Ali Khan (Md.)Vs. Asalat Khan and others reported in 6 MLS(HC)2001 at page 28.

The learned Advocate finally submits that under the provision of the Evidence Act a documentary evidence as regarding ownership of land always prevail other the record of right, therefore, the patton dated 22.03.1921 in the name of Rahimuddin should not be taken away by wrongly recording in the name of others by practicing fraud, therefore, the Rule is liable to be discharged.

Considering the above submissions made by the learned Advocate appearing for the respective parties and also considering the application filed under section 115(1) of the Code of Civil Procedure along with Annexures therein, in particular, the impugned judgment and decree and also considering the materials in the lower court records, it appears to me that the suit land as mentioned in the plaint of the title suit No. 116 of 1994 is situated in Mouza Baro Chaker, P.S. Banoripara, District- Barisal for the measuring 1.34 acres. The admitted position between the parties are that the land was originally owned by the Landlord prior to the year of 1921 by Munshi Abdul Karim and also by Abdul Latif who settled the scheduled

land by way of patton in the name of Rahimuddin, the predecessor of the present plaintiff- opposite parties No. 1 to 3. It also appears that the said Rahimuddin died in the year of 1940 while he was holding the land of patton. Now the question is whether a right as per the deed of patton is inheritable or not. I put some questions to the learned Advocates appearing for the respective parties but I could not get useful answer to this. However the rayati entitlement as a riyat continuous on condition if the landlord received khajna from the holder of patton or subsequent heirs or successors. In this regard section 26 of the Bengal Tenancy Act, 1885(now repealed) was a relevant law which reads as follows:-

“26. If a raiyat dies intestate in respect of a right of occupancy, it shall, subject to any custom to the country, descend in the same manner as other immovable property; provided that in any case in which under the law of inheritance to which the raiyat is subject his other property goes to the Crown, his right of occupancy shall be extinguished. “

The above provision of law devolving right continued until introduction of State Acquisition and Tenancy Act, 1950 which repealed the Bengal Tenancy Act. In this regard it is to be considered that during the relevant period for settlement by way of patton and the devolution of right upon the successors of occupier was upon Rahimuddin and after him upon the legal heirs of Rahimuddin under the said provision, the present defendant-petitioner as the successors of two brothers, namely, Mominudin Sikder and Choton Sikder alias Basher Sikder could not acquire any right by way of record of right in the R.S. Khatian. R.S. Record in the then District of Barisal started in the year of 1952, therefore, before the record of right in the R.S. the successors or the legal heirs of Rahimuddin remained as the legal owners who have record of right after 1952.

The present plaintiff-opposite parties produced the said deed of patton as exhibit-Ga and Gha both dated 22.05.1921 which was in the name of Rahimuddin alone and there was no mention of any right of the brothers who claimed to have been minors in the year of 1921. As the said Rahimuddin had his own sons including the present plaintiff-opposite party Nos. 1 and 2 under the Muslim Law if an owner of a property died leaving behind his own children then the property could not be diverted upon the brothers or father when own children could be legal heirs. In this regard the concept of joint family cannot be created any right in favour of brothers or any other person. In my view, the holder of the patton and after his death his heirs are entitled to the land and the record of right in the R.S. Khatian cannot be considered as validly recorded in the name of successors of the said brothers of Rahimuddin who are the present defendant-petitioners.

I have carefully examined the judgments and decrees of the courts below. The learned trial court came to a wrongful conclusion to dismiss the suit filed by the plaintiff-opposite parties as the successors of the Rahimuddin who obtained the land on the basis of the following findings without considering the evidence:-

“বাদী পক্ষের স্বাক্ষরী পি, ডব্লিও ও মফিজ উদ্দিন হাওলাদার জবানবন্দির বিভিন্ন অংশ ব-ল-ছেন “নালিশী জমির দাগ খতিয়ান ও দা-গ জমির পরিমাণ বল-ত পারি না। নালিশী জমি তিনটা খ-ন্ড। কোন খ-ন্ড কতটুকু জমি বল-ত পারি না। কতটুকু জমি নি-য় মোকদ্দমা, নালিশী জমির কোন অংশীদার আ-ছ কিনা জানি না। কি নি-য় মোকদ্দমা জানি না।” সুতরাং দেখা যা-চ্ছ বাদী পক্ষ মৌখিক সাক্ষ্য দ্বারা প্রকৃত পক্ষ নালিশী জমির কতটুকু অংশ তার স্বত্ব দখল আ-ছ সেটা প্রমাণ কর-ত সফল হয়নি। তাছাড়া ২ ও ৩ নং বাদী ১ নং বাদীর স্ত্রী ও মে-য়। ২ ও ৩ নং বাদী কিভা-ব নালিশী জমির স্বত্ব অর্জন ক-র-ছ বা কিভা-ব বর্তমান মোকাদ্দমায় বাদী শ্রেণীভুক্ত হ-য়-ছ সেই সম্প-র্ক আর্জি-ত কোন সুস্পষ্ট ব্যাখ্যা নাই। তাছাড়া বর্তমান মোকদ্দমার রহিমদ্দিনের কন্যা মিনু বিবি ও জোহরা বিবির সকল ওয়ারিশ-দের পক্ষ করা হয়নি। ফ-ল বাদী পক্ষের মোকদ্দমাটি পক্ষ দো-ষ বারিত ব-ল প্রতীয়মান হয়।

বাদী পক্ষের পরবর্তী দাবী হ-লা যে, -দওয়ানী ৬৫/৫৪ নং মোকদ্দমার বাদীপক্ষের উপর সমন নোটিশ জারী না ক-র ইং-রজী ২৯-৬-৫৭ তারি-খ একান্ত

ডিক্রী হাসিল করা হ-য়-ছ। বাদী পক্ষ আর্জির ৮ দফায় উল্লখ ক-র-ছেন দেওয়ানী ৬৫/৫৪ নং মোকদমার সৈয়দ নুরুজ্জমান তনচকী ম-ত ঐ মোকাদমার বাদীপ-ক্ষর উপর সমন -নাটিশ জারী দেখি-য় তনচকী ডিক্রি হাসিল ক-র-ছ। বাদীপ-ক্ষর এই রূপ বক্তব্য গ্রহন যোগ্য নয় কারন দেওয়ানী ৬৫/৫৪ নং মোকদমায় সৈয়দ নুরুজ্জমান ১০ নং বিবাদী ছিল। সমন নোটিশ -গাপন কর-ল বাদী পক্ষ কর-ব। ১০ নং বিবাদী কেন সমন নোটিশ গোপন কর-ত যায় -সটা এই আদাল-তর বোধ গম্য নয়।”

The learned appellate court below lawfully allowed the appeal filed by the present plaintiff-opposite parties as the appellants by reversing the judgment t and decree passed by the learned trial court setting aside the said judgment and decree of the trial court on basis of the following findings:-

“আমরা জানি মুসলিম আই-ন যৌথ পরিবার এবং পরিবা-রর আয় দ্বারা অর্জ-নর বিষয়টি আইন স্বীকৃত নয়। সুতরাং বিবাদী -রসপন-ডন্ট প-ক্ষর যৌথ পরিবা-রর দাবী এবং যৌথ পরিবা-রর আয় দ্বারা ২২-০৩-২১ তারি-খর পাট্রা মূ-ল সম্পত্তি অর্জ-নর দাবীটি বেআইনী বিধায় গ্রহন-যোগ্য ন-হ। ইহা প্রতিয়মান হয় ১৯২১ স-নর আ-লাচ্য পাট্রা সংক্রান্ত বিষ-য় কবুলিয়াত এবং পাট্রা রহিমদ্দিনের একক নামীয় । দালিলিক এবং মৌখিক সাক্ষ্য বিচার বি-শ্লষ-ন আদাল-ত অভিমত হইল ১৯২১ স-নর ১.৭৯ একর সম্পত্তি রেজিষ্ট্রিকৃত পাট্রা মূ-ল রহিমদ্দিনের একক অর্জন। ইহা প্রতিয়মান হয় দেওয়ানী ৬৫/৫৪ নং মোকদমার ডিক্রিরদের প্রার্থনায় রহিমদ্দিনের বোন জোহরার পুত্র অত্র মূল মোকাদ্দার ৩০ নং বিবাদী আদম আলী দেওয়ানী ৫৮০/৮১ নং মোকাদ্দমা ক-র । এই মোকদমায় অত্র মূল মোকদমার ১নং বাদী ১৩৬ নং বিবাদী এবং তাহার দুই ভাই ১৩৫/১৩৭ নং বিবাদী ছি-লন এবং ঐ মোকদমায় অত্র মূল মামলার ২১ নং বিবাদী ১৩০নং বিবাদী ছিলেন। উক্ত দেওয়ানী ৫৮০/৮১ নং মোকদমায় সো-ল সুত্রে খারিজ হয়। বাদী অ্যাপিল্যান্ট উক্ত সো-লনামা -যাগসাজসী বলিয়া দাবী ক-রন। ইং-রজী ১৫-০৪-৫২ তারি-খর ইসমাইল সিকদার দাতা আজিমন বিবি গ্রহীতা নামীয় দলিল বাদী আপিল্যান্ট সম্পাদন করিয়া দেয় নাই বলিয়া দাবী ক-রন। উক্ত দলি-লর বাদী আপিল্য-ন্টর কর্তৃকই সম্পাদিত তাহা হস্ত-রখা বিষারদ দ্বারা প্রমানিত হয় নাই। বিজ্ঞ নিম্ন আদালত কর্তৃক উক্ত দলিল বাদী ইসমাইল সিকদার প্রদত্ত সম্পাদ-নর তুলনামূলক পরীক্ষা মারাত্মক ঝুঁকিপূর্ণ হইয়া-ছ। যাহা সঠিক হয় নাই বলিয়া আদালত ম-ন ক-রা বর্ণিত সো-লনামায় এবং ইং-রজী ১৫-০৪-৫২ ও ১৫-১০-৫৫ তারি-খর দলিল এবং ইং-রজী ০৮-০২-৮৩ তারি-খর নাদাবী পত্রে বর্ণিত ইং-রজী ২২-০৩-২১ তারি-খর পাট্রা দলিল ভুক্ত সম্পত্তি রহিমুদ্দিন গং তিন ভাই অ-র্থ এবং স্বা-র্থ অর্জিত হওয়া সংক্রান্ত বিবৃতি বাদী আপিল্যান্ট পক্ষ কর্তৃক নয় এবং তাহার দায় দায়িত্ব বাদী আপিল্যান্ট প-ক্ষর বিজ্ঞ কৌশলী দাবী ক-রন। বাদী অ্যাপিল্যান্ট পক্ষের বিজ্ঞ কৌশলী আ-রা ব-লন যে, ইং-রজী ০১-০১-৮৪ তারি-খর ৩৫ নং বিবাদী রেসপন-ড-ন্টর দাবীকৃত কবলা দলিল প্রদর্শন-গ(১)১ এ বিবৃত আ-ছ যে, বিক্রিত সম্পত্তি জমার সম্পত্তি বিক্রেতার পিতা রহিমুদ্দিন ইং-রজী ২২-০৩-২১ তারি-খর পাট্রা মূ-ল প্রাপ্ত হইয়া-ছ।

সুতরাং নালিশী সম্পত্তির আর, এস এবং এস এ রেকর্ড রহিমদ্দিনের একক না-ম হওয়াই সংগত বিধায় নালিশী সম্পত্তির আর, এস এবং এস রেকর্ড ভ্রাম্যন্তক বলিয়া বাদী আপিল্যান্ট প-ক্ষর দাবীই গ্রহন-যোগ্য।

বাদী আপিল্যান্ট পক্ষ আ-রা দাবী হইল দেওয়ানী ৬৫/৮৪ নং মোকদ্দমায় বিবাদী পক্ষ উপর সমন নোটিশ জারী না করিয়া ইং-রজী ২৯-০৬-৫৭ তারিখ এক ভ্রান্ত ডিক্রি হাসিল করিয়া-ছেন। সুতরাং প্রতারণামূলক উক্ত ডিক্রি রদ ও রহিত যোগ্য।”

From the above two conflicting judgments and decrees, I consider that the learned appellate court allowed the appeal by setting aside the judgment of the trial court after considering and properly examining the documents produced by the parties and there is no misleading or misunderstanding of any documents produced by the parties in the court below, therefore, came to a conclusion lawfully on the basis of the evidences produced in the court. On the other hand, the learned trial court came to a wrong conclusion to dismiss the suit on the basis of concept of joint family, therefore, the judgment of the trial court is liable to be set aside. In view of the above I am not inclined to interfere into the impugned judgment and decree.

Accordingly, I do not find merit in the Rule.

In the result, the Rule is discharged.

The decision of the learned Special District Judge Adalat and Jananirpatta Bighnakari Approad Daman Tribunal, Barisal passed in the Title Appeal No. 178 of 2009 on 14.07.2010 is hereby affirmed and the judgment and decree passed by the learned trial court is hereby set aside.

The interim order of direction to maintain statusquo in respect of the possession of the suit land is hereby recalled and vacated.

The office is directed to communicate the judgment and order to the concerned court and send down lower court records immediately.